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Just War Thinking in Catholic Natural Law

Joseph Boyle

I AM IN SUBSTANTIAL AGREEMENT with the analysis in John Finnis's chapter. Indeed, it is as good a short statement of just war theory within the Catholic natural law tradition as I know of. Given this, I think the most useful contributions I can make are to underline certain points that seem to me to be important, to develop some of the distinctions Finnis makes, and to draw out some of the implications of his analysis. I will also say something more than Finnis does about conscientious objection and the duty of citizens to support their nation's war efforts.

PEACE AND WAR

Finnis portrays the natural law tradition as not having been greatly concerned with the definition of war; it appears satisfied with Cicero's unsatisfying "contending by force." Part of the reason is that, although there is a paradigm case of war—a relationship between polities in which one seeks by physical force to thwart some of the other's undertakings and to seize or destroy some of the other's resources—there are variations on the paradigm that raise the same or similar moral questions and are governed by the same principles and many of the same norms. So, the tradition proceeds on the assumption that the effort to develop a general definition is not of much help and may in fact mislead.

Furthermore, within the tradition there is a recognition that among the activities that are called "wars," either in ordinary language or according to any definition that is not purely stipulative, there are activities of differing moral character. The idea is that the moral significance of bellicose actions, like that of actions generally, emerges not from a definition of the ordinary usage of terms like war or violence, but from a determination of how actions, considered not as mere behavior but as voluntary undertakings in which people choose to do certain things for the sake of certain benefits, are related to the standard of right reason. By reference to this moral standard, two behaviorally similar or even identical actions, which can both correctly be called wars, can be essentially different from the moral point of view, if done for different purposes or under different circumstances.¹ So, from the perspective of natural law, justified and unjusti-

fied wars are not two species of the same genus; they are essentially different kinds of action.

According to Finnis, the relationship of wars to the good of peace is central to the distinction between just and unjust wars. This good is inevitably at stake when warfare is contemplated or undertaken. Other goods are also surely affected, but these are reasonably incorporated into this relational notion. For the norms of justice regulate the harms that may be inflicted on people, their holdings, and their institutions, and justice is a part of the wider social good of peace as understood within the tradition.

Now, the idea of peace that the tradition develops from Augustine is plainly the idea of a basic good, a reason for which action can be undertaken without any further benefit in view.² As social animals, human beings have reason to want to form a community with others, to cooperate with them, and to live in harmony with them. Unjustified wars are evil because of the harm they cause to this good and its component parts; even justifiable wars need special justification because of their at least apparent conflict with this good.

But why should this good, rather than some others, be the *point* of war, as Finnis holds the logic of the tradition to require?

To answer this, it is first necessary to underline Finnis's point that there is a kind of peace that is not the real thing, but only an appearance of peace that includes enough of the elements of true peace to provide a reason for acting, organized in such a way as to block the realization of genuine peace. Thus, the harmony one seeks when one undertakes to dominate or enslave others or to satisfy one's desire for vengeance is not peace; these actions may aim at a kind of order and at a form of tranquility, but they block the harmony of wills and the genuine community that peace includes. Perhaps morally unjustified wars inevitably aim at this inadequate kind of peace, but plainly that is not what Finnis is referring to when he claims that peace is the point of war.

His claim plainly is normative: morally justified warfare should aim at peace, should be for the sake of peace. And it is not the fact that peace is a basic human good, an ultimate reason for action, that underlies this claim. For peace has an especially intimate relationship with basic moral principles as understood within natural law. The practical reasonableness prescribed by natural law requires action compatible with a will open to an ideal human community in which all the goods of all people are realized in interpersonal harmony.³ This is the ideal prescribed by the commandment to love one's neighbors as oneself. It is, among other things, a peaceful community of human beings. Since all upright choice and action must be ordered toward this ideal, all upright choices to engage in warfare must also be so ordered.

In short, within the natural law tradition, wars can be morally justified

only if they are morally good actions, that is, justified by basic moral principles; and those principles can be usefully formulated in terms of peace. Both these points are important for situating the natural law approach to warfare in relation to other normative approaches.

First, the dependence of the moral evaluation of any war on moral first principles clarifies both the character and the purpose of natural law reasoning about warfare. This reasoning is an application of the basic principles of morality to the special conditions of warfare and to the particular circumstances of individual wars. Thus, according to the tradition, the precepts governing warfare are neither the result of a generalization from considered judgments about what is acceptable and unacceptable in warfare, nor the result of casuistical reasoning from certain paradigm cases of wars that are plainly wrong and of wars that are plainly justified. The considerable casuistry within the tradition's analyses of war is part of the effort to clarify the character of various bellicose actions to allow a precise application of moral principles to the case at hand.

There is a recognition within the tradition of the complexity of the process of applying moral principles and general moral norms to individual actions.⁴ Although the structure of this reasoning is deductive, the clarification of the kind of action to be evaluated is achieved by informal conceptual analysis.⁵ Moreover, this deductive and analytical procedure can result only in the evaluation of an action as described, that is, in the evaluation of an action insofar as it is an action of a certain kind. Since further redescription of the individual action being evaluated can in many cases turn up features that might cause a change in the action's moral evaluation, and since there is no rationally determined limit to the possibility for redescrbing an action, there remains an aspect of moral evaluation not reducible to rational analysis.⁶

Nevertheless, the application of moral principles to individual actions is at the heart of moral analysis according to natural law. For the correct application of moral principles to individual actions is necessary for the determination that those actions are in accord with moral truth. And the determination of the truth of concrete moral judgments, including those about warfare, is the purpose of moral analysis on the natural law conception.

Thus, on the natural law conception, the judgment that a given war meets the standards for a just war is in fact the judgment that the choice to undertake the war is in accord with moral truth. This means that the communal choice of a nation to undertake a war that is just is a morally good choice, and that the choices of soldiers and other citizens to support that communal choice are to that extent morally good. These choices are not necessary compromises with evil, nor are they immoral choices constrained from even greater evil by conventional rules; rather, they are choices completely in accord with moral truth. The determination of the

moral truth as applied to given wars is the purpose of normative analysis on the natural law conception, and no war that fails to meet the standards of moral truth can be justified by these standards.

Second, the formulation of moral principles in terms of peace is useful for situating the natural law tradition's approach to war in relation to pacifism, especially Christian pacifism. For this formulation makes clear that any war that is morally justified must be at a deep level compatible with and in the service of peace. This suggests that disagreements between pacifists and natural law theorists are not located at the level of fundamental moral principle, but emerge within the reasoning from principles to concrete moral evaluation.

This suggestion is underlined by the following implication of Finnis's analysis. The pacific character of the principles governing war, together with the *bonum ex integra causa* principle, which, as Finnis explains, requires that a morally good act be in every aspect in accord with reason,⁷ implies that a justified war is one that involves no choice or intention incompatible with the reality of peace.

This looks paradoxical: taking up arms against others seems to involve choosing something contrary to peace with them, even if for the sake of future peace with them. No doubt, many, perhaps most, wars are fought with such intentions, and pacifists are correct in objecting that those wars are immoral—instances of doing evil so that good might come of it. But not all wars need involve such intentions: if peace does not exist or must be protected, and if one's bellicose actions are necessary to bring it about or to protect it, then those actions need involve no choice or intention contrary to peace. Moral principles do not appear to exclude war in these conditions.

Pacifists deny this conclusion. But the fact that pacifists and natural law theorists agree in rejecting, for reasons that appear similar, a considerable class of wars suggests that the disagreement here is not over moral principles, but over concerns whether the conditions ever obtain that allow war to be fought compatibly with moral principles. In particular, it would seem that pacifists reject the natural law conclusion because they believe that the dispositions of nations and of individual soldiers are such that when they fight, they must inevitably turn their hearts against peace, even when defending or protecting it. If warriors necessarily willed to harm their enemies when fighting them, then the pacifist claim to inevitability would be justified. But as Finnis indicates, the natural law tradition's view of justified killing in warfare can be understood as excluding the intent to kill,⁸ and this can be generalized to apply to other harms inflicted on one's enemies.

If this analysis is correct, a pacifist claim that choosing to engage in warfare inevitably involves turning one's heart against peace cannot be grounded in the essential intentional structures of the choices and acts of

belligerents. Thus, one crucial point of disagreement between pacifists and natural law theorists is the truth of the pacifist claim that warfare inevitably involves choices incompatible with the good of peace. The truth of this claim is not evident, but neither is its falsity.

MOTIVE OR INTENTION

Finnis plainly holds that intentions are intrinsic to actions as voluntary undertakings. He also assumes that voluntary undertakings are the subject of moral evaluation. The intention essential to a human action as voluntary is one's active interest in some benefit for the sake of which one chooses to do something. So what one intends, strictly speaking, is a benefit, what the reason for which one acts promises as a desirable outcome.⁹ This non-behavioristic conception of human action often makes it difficult to determine from a third-person perspective what action a person, or a group of persons acting jointly, is performing. But these difficulties do not render impossible third-person identification of actions, and they surely do not preclude the possibility that individuals and groups, aware of their own practical reasoning and choices, can accurately identify their acts as voluntary undertakings. So, the conception of human action accepted by many within the natural law tradition is not incoherent.

Moreover, the tradition's judgment that actions so characterized are the subject of moral evaluation is not arbitrary, but is a function of a coherent, if controversial, understanding of the purpose of moral evaluation. As noted above, according to the natural law conception, the purpose of moral evaluation is to determine the truth of concrete moral judgments, and this purpose is realized when the morally relevant features of actions are correctly related to the principles of right reason. Why is it important that human actions be guided by moral truth, and so be determined to accord with right reason? The tradition's answer, more often left tacit than explicitly articulated, is that providing this kind of direction for human action is the only way human action as voluntary, as an exercise of the rationality and freedom in virtue of which humans are in God's image, can be rationally guided and genuinely fulfilling.¹⁰

In short, there are various conceptions of morality and its purposes, but the natural law conception is one according to which the point of morality is to allow one's practical reasoning and choices to be fully intelligent and good. Morality, on this conception, is not a constraining device to cause people to avoid the most socially destructive behavior of which they are capable or to get them to be as good as they can be without their own cooperation; rather, it serves to provide fully rational guidance for choices, for actions as voluntary undertakings.

It is perhaps worth noting that the doctrine of the double effect, an important component of the natural law casuistry of warfare, presupposes

the tradition's conceptions of human action and of morality, but is neither equivalent to these conceptions nor implied by them. According to this doctrine, the difference between what a person intends and the side effects a person knowingly brings about in acting can have a decisive moral significance. For example, the just war requirement of noncombatant immunity is a prohibition of intentional attacks on noncombatants. The doctrine of double effect constrains the absolute prohibition to that of intentional attacks, and allows that, if certain other conditions are fulfilled, actions that predictably lead to the deaths of noncombatants may be undertaken.

Clearly, this doctrine is hardly intelligible without a conception of human action and morality like that held by the natural law tradition. Still, the attribution of decisive moral significance to the distinction between what is intended and what is knowingly brought about as a side effect is not a feature of these general ideas about action and morality. For it is clear that all the voluntary aspects of actions are governed by moral norms, not simply those included within one's intention. The significance of this distinction arises because there are absolute prohibitions, and those prohibitions cannot reasonably be extended to exclude bringing about harmful side effects.¹¹

Given the natural law conception of human action and of the purpose of moral evaluation, it is not surprising that natural law statements of the conditions for just war include a requirement of right intention. But a puzzle emerges from standard statements of these conditions because of the addition of a condition requiring just cause. As Finnis notes, what one's reason for action promises and what one intends in acting are identical: why do Aquinas and the subsequent tradition treat right intention and just cause as two distinct conditions for the justifiability of a war? The assumption is that the just cause is the reason for action and that the benefit it promises is what one intends. Finnis's answer is that Aquinas had a technical, legal meaning for just cause according to which the just cause is not a justifying reason.¹² That seems plausible.

But I think there is a reason, compatible with the one Finnis proposes, for having two separate conditions here that would hold even if just cause were taken to be the justifying reason. Without the condition of right intention, the connection between one's action and the reason that justifies it remains contingent, and this allows for the possibility that just cause could be only a pretext or excuse for bellicose action aimed at some further goal beyond that which one's justifying reason supports, or at some completely independent goal that can be pursued using the justifying reason as a rationalization only. In other words, only to the extent that one acts for goals supported by the justifying reason, insofar as they are supported by it, and only for them, is one's bellicose action morally justified.

This does not mean that one cannot engage in war in anticipation of benefits that go beyond one's justified war aims. Those aims are goals that

instantiate, often in a minimal way, the good of peace. Further goals that instantiate that good and that can be seen as possibilities if one's war aims are realized are thus justified if the war aims are. Thus, for example, the fact that in the Gulf War, the United States was motivated by the prospect of improved economic and political relations with some Gulf nations should its efforts to evict the Iraqis from Kuwait succeed does not seem to be the kind of further intention that violates the condition of right intention. That intention was for actions and benefits that became real prospects once the normal international relationships were restored by the successful achievement of the war aims. This kind of intention, which looks ahead to the future benefits of the peace created by achieving justified war aims, seems to me unavoidable and legitimate. The presence of such intentions has no tendency to suggest that the justifying reasons for war, and the specific goals they legitimize, are pretexts or rationalizations.

Acting with some intentions does, however, render one's justifying reason a mere pretext or rationalization. Suppose, for example, that the underlying motivation for the American involvement in the Gulf War were not the defense of Kuwait, but a desire to destroy Iraq's economic and industrial capacity to prevent future aggression, or to punish an erstwhile ally for insubordination. If one of these were the intention behind the war, then it would fail the condition of right intention, assuming (as I do) that intending these things is not justified. This would be so even though a just cause existed, and even if care were taken to carry out the war aims and to limit, for various reasons such as international opinion, military actions to those which carry out these aims. For in this scenario, the goals are pursued not as instantiating the justifying reason, but insofar as they instantiate the unjustified reasons. Indeed, when Elizabeth Anscombe in 1939 objected to the British decision to go to war with Germany, allegedly in behalf of Poland, her worry was not that there was no just cause available, but that it was not the reason for which Britain fought.¹³

GROUNDINGS FOR WAR

Finnis rejects the older tradition's belief that in addition to defensive grounds, the war of one nation against another can be justified on retributive grounds as a kind of punishment for wrongdoers. Representatives of the tradition in the last fifty years accept this judgment. But Finnis also rejects the reason commonly given, namely, that modern war is too destructive to be used except as a means of defense. His proposal is that the underlying rationale for retributive warfare is mistaken; the authority required to rightly punish other polities and those who act for them does not exist (although something similar to it would exist if there were a world government).

The rejection of retributive justice as a justifying ground for warfare seems to me to involve more than tinkering with the theoretical foundations of the natural law approach to war and peace. The idea is not that, although punishment is out as a justification, defense is a broader notion than we thought; with this approach, things would remain pretty much as they were at the practical level, except that the rationale of defense would now bear the justificatory weight that punishment used to bear. It is true that the notion of defense is broader than the older tradition assumed, but it is neither completely elastic nor coextensive with the notion of punishment.

One practically important respect in which the notions of defense and punishment differ is in the way they are related to past wrongs. A person cannot defend against a wrong already perpetrated, although he or she can defend against its continuing consequences. But a person can, and under the proper circumstances may, punish another for a wrong already perpetrated. Thus, if legitimate grounds for war are limited to defensive considerations, then just to the extent that standing grievances among polities are *past* wrongs, and not ongoing injustices, they are not legitimate grounds for war. There is no defending against them. (I am not suggesting that the casuistry needed to apply this distinction would be easy.)

Furthermore, and perhaps more importantly, defensive grounds limit the further goals one can adopt as a justified defensive war unfolds. The only deterrence one can legitimately seek is that which flows from successful defense, and the only punishment one can seek is that which is involved in successful defense. Thus, efforts to inflict punishment on the enemy beyond what defense justifies are immoral, as are efforts that go beyond what defense justifies to arrange the end of a war so as to put the enemy leaders on trial, or to destroy a polity or a regime. The desire to see war criminals punished is legitimate, and can be acted upon after the war, provided that an authority can be located that has the right to punish. But this desire cannot, if punishment is excluded as a legitimate ground for war, provide a justification for fighting, or for further fighting. I suspect that these limitations are widely ignored in modern warfare, as they were, for example, in the Second World War. They would be hard to maintain if punishment were a legitimate ground for war.

RESISTANCE TO POLITICAL AUTHORITY

In this section of his chapter, Finnis does not discuss the issue of conscientious objection. I will say something about this because it falls squarely in the middle of the natural law account of political authority and obedience. This account, at least according to some readings, has quite permissive implications concerning the responsibilities of individuals, especially sol-

diers, for their cooperation in war efforts, and in several ways seems to require a subordination of individual, conscientious judgment to the judgment of political leaders.

Alan Donagan has succinctly stated the norms that the natural law tradition regards as decisive in regulating the decisions of individuals in respect to their government's wars: "If it [a given war] is just, it is permissible to volunteer to serve in it, provided no other duty prevents it; and it is impermissible not to accept lawful conscription to serve. If it is unjust, it is impermissible to serve under any circumstances."¹⁴

These norms make sense only if the citizen is expected to make an independent moral evaluation of the justifiability of the war in which he or she cooperates. So natural law, along with the broader tradition Donagan calls "common morality," rejects the rationalization that Shakespeare puts in the mouth of one of Henry V's soldiers: "We know enough if we know that we are the King's men. Our obedience to the king wipes the crime of it out of us."¹⁵

The second of Donagan's three norms appears to exclude any interesting form of conscientious objection, that is, any refusal of lawful conscription based on any consideration other than the judgment that the war in question is immoral. Although the third of Donagan's norms states that this is a reason that requires one to refuse service, the second norm certainly suggests that there are no general grounds to which a citizen might appeal as a justification for refusing military service in his or her country's just war. This also has been the standard position of the Catholic tradition, at least up until about 1960.

The assumptions behind this view are worth noting: (1) that in a just war, political society may impose military service on its members; (2) that a citizen drafted for military service has a duty to obey and support the justified decisions of political authority; and (3) that this duty is very hard, if not impossible, to overturn. The first two of these assumptions are deeply embedded in the natural law conception of social life; but I doubt if the third can be justified, however deeply presumptions in favor of the prerogatives of political society may have permeated natural law thinking in the past. I do not see why this duty should be any less defeasible than any other structured and recognized social obligation.

Here are some reasons for being suspicious about this third assumption: the tradition includes an exception for a class of citizens—the clergy.¹⁶ Their social role is such that they must not fight. So, this assumption cannot be accepted in its strongest version, namely, that the duty of citizens to fight in a just war when ordered is impossible to overturn. Moreover, one may also wonder whether reasons similar to those which exempt the clergy from the duty to fight do not also exempt others, either because of the special jobs they have or for other reasons having to do with special com-

mitments they have undertaken. If the clergy is exempt, then why not also monks not in holy orders? If monks, then why not others like doctors or teachers or others whose work seems especially opposed to bloodshed? If these, then why not others who have adopted a particularly pacific or prophetic lifestyle? I doubt there is a good answer to questions like these. More generally, it is not clear why the duties people have as citizens should necessarily or generally trump the other duties they have within the other communities in which they live and work.

So, I think that the recent ecclesiastical statements that call for states to recognize a right of conscientious objection, a right that seems to go beyond protecting an individual who acts on the judgment that the war in question is immoral,¹⁷ are a correct development of the tradition, and that this new teaching is justified by the tradition's growing wariness about excessive deference to the prerogatives of political society and perhaps of the clergy as well. If I am correct, this development does not imply an incipient willingness to accept the view that war is necessarily wrong, or that citizens do not have a real, though defeasible, obligation to fight in their country's just wars.¹⁸ To recognize that a duty is defeasible is not to suggest that it might not exist.

Catholic teaching, then, does not endorse the position that pacifism—that is, the claim that war is always wrong—is a legitimate position. It does, however, appear to endorse the view that a conscientious refusal to fight in one's country's wars is easier to justify than earlier Catholic teaching or natural law theorizing have allowed.

So far, I have ignored the epistemic issues that complicate the efforts of citizens and potential soldiers to evaluate their nation's war. What should one do when one does not know that the war in which one is commanded to fight is unjust, but has doubts about the matter?

The standard answer seems to favor compliance with authority. Walzer quotes Vitoria: "A prince is not able . . . and ought not always to render reasons for the war to his subjects, and if the subjects cannot serve in the war except they are first satisfied of its justice, the state would fall into grave peril."¹⁹ Walzer then goes on to look at the moral situation from the perspective of the draftee: under the circumstances he can hardly be blamed for going along with the authorities.

It is reasonable to refuse to blame those who out of fear of punishment, habits of law-abidingness and patriotism, or immaturity obey the commands of their political leaders. But considerations like these provide an excuse for those who comply, not a justification for the claim that even when in doubt about the justice of the war, they should comply.

Vitoria's brief argument addresses this question of justification, but inconclusively. He rightly notes that political leaders sometimes cannot and sometimes should not render reasons for waging a war to those they gov-

ern. But the inability of the leaders to explain the reasons for waging a war, even if this arises from their moral obligations as leaders, does not settle the responsibilities of potential soldiers in doubt about whether it is right to fight. Apparently to deal with this lacuna in his analysis, Vitoria adds that if subjects need to be satisfied of the justice of the war before they may serve, then the state will be in grave peril.²⁰

Perhaps Vitoria means this to be a consequentialist argument: the peril of proceeding in this way provides a decisive reason for resolving doubts in favor of the decision of the political leaders. But this argument is problematic within a natural law context. First, it is not clear why, if consequentialist reasoning should be the tiebreaker in cases of doubt, it should not also be used more generally. But, plainly, consequentialist reasoning does not figure prominently in natural law analyses, and there is good reason to think it an alternative approach to moral thinking that is deeply alien to natural law.²¹ Second, there is some reason to wonder whether a presumption for settling doubts in favor of the state will generally avoid the kinds of peril Vitoria is worried about, or whether avoiding such perils is generally a good thing. A docile citizenry may make it easier for a country's leaders to engage in warfare, but that has its own dangers; and facilitating warfare is frequently not a good thing, whether from the perspective of a morally defined conception of the common good or from a consequentialist conception of the overall benefit and harm brought upon those affected by the war.

It remains, therefore, that the presumption that doubts should be settled in favor of the judgment of political leaders must be justified, if it can be, either by something specific to the situation of choice when there is doubt about its moral character, or by something specific to the way political authority figures in such situations. In general, one's responsibility in situations of doubt is to try to resolve the doubt, but in no case to do what one has reason to think might be wrong; for to do this would be to be willing to do what is wrong.

Given these norms for resolving doubts, the role of authority in the process is limited. It is often reasonable for a person to accept the authority of experts concerning judgments within the area of their expertise, even if the person cannot judge for himself or herself about the matter. Thus, the authority of moral advisors, scholars, and others with relevant experience can be important, and sometimes decisive, in settling doubts.

But it is hard to see how authority in areas other than those in which truth is discovered and moral reasoning correctly carried out could be relevant to settling doubts. In particular, it is hard to see how a presumption in favor of the judgment of political authority would figure significantly in a procedure for settling doubts governed by these norms. For political authority is based on the need of a community to act in concert, and so those

who have political authority do not have it because of any special expertise in determining the facts or in moral reasoning.

Still, political authority is real, and citizens have a real, though defeasible, obligation to obey the lawful commands of political leaders. This obligation is often relevant to the deliberations of a potential soldier in doubt about the justice of the war in which he is commanded to fight. His obligation to obey this command can be overridden only if a reason is present for thinking that obedience would be immoral. Mere feelings of distaste, worries, or a feeling that what is commanded might be wrong are not sufficient to override the duty to obey. They are not doubts that generate moral dilemmas. Similarly, a conviction that one's political leaders are untrustworthy, that they lie to the country, or that they act with bad will, is not a reason justifying a refusal to obey, unless it is based on evidence. Without evidence, such convictions may be no more than an expression of unwillingness to accept the moral legitimacy of political authority.

Consequently, the authority of political leaders can play a role in the deliberations of the potential soldier in doubt about the justice of the war in which he is commanded to fight. Besides providing part of the context for setting aside putative doubts that do not establish a reason for doubting that a war is just, the authority of political leaders sometimes provides a reason for taking their statements about the justice of the war at face value. When there is no evidence or specific ground for distrusting the statements of political leaders, cooperative citizens will accept them as true, and sometimes that is enough to settle the doubt.

However, if such considerations as these do not settle the doubt, that is, if, after considering fully the obligation to obey legitimate authority and the obligation to accept the authority's credible statements, there remains a reason to think that the war is unjust, then the potential soldier should refuse to participate. For in that situation, the authority of the political leaders would be used precisely to enjoin obedience to a command whose moral legitimacy is in question, and the potential soldier would be commanded to do what he had reason to think was seriously wrong. Since doing what one has reason to think is wrong is itself wrong, one cannot be obliged to obey commands to do such things. Indeed, one is obliged to disobey them.

In a word, the presumption in favor of obeying political authority in conditions of doubt about the justice of a war is a weaker one than Vitoria and many others in the tradition have allowed. The prince is obliged, at least in some circumstances, to "render reasons" to his subjects. As Donagan notes: "War is such a horrible evil that only a very clear and great cause can justify it; and when such a cause exists, it should not be difficult to show it."²²

Moreover, whatever the prince's obligations, potential soldiers must sat-

isfy themselves that there is no reason to believe that the war they are asked to fight is unjust. So, natural law implies, and natural law theorists should hold, that individual moral judgment, if not “individual volition,”²³ must be brought to bear on the decisions of citizens and potential soldiers about whether to participate in their country’s war.

The restriction of individual moral judgment to what citizens can certainly *know* appears to make things easier for political leaders and for citizens. But the effect of this limitation has often been to render just war considerations a dead letter, at least as they figure in individual deliberation.²⁴ The laxism of this development is obvious, and has brought justified scorn on the just war theorists and religious leaders who defend it.

The central moral problem is that obedience has no tendency to excuse or justify individual action contrary to conscience. For obedience is a form of social cooperation in which one’s choice to obey is intelligible only as a part of a social act in which the goals of the polity are pursued. Obedience is justified in this situation only when honest moral reflection reveals no reason to think that there is a crime, and obedience is not morally justified as long as one has a reason for thinking the war is criminal, or as long as one negligently fails to determine whether such a reason exists.

I am not suggesting that one cannot comply with the orders of those who have power over one’s life without strictly obeying them, that is, without entering into a form of social cooperation in which one endorses and actively promotes the goals of the powerful party. What the natural law tradition calls “material cooperation” is possible in wartime; without endorsing their government’s unjustified war, citizens can cooperate in various ways with the government, even if this cooperation furthers the war effort. This kind of cooperation can be morally justified, and often is for citizens whose support of a war they judge immoral is limited to paying tax and carrying on their lives in a law-abiding way.²⁵ But the decisions of citizens to fight or to actively support such a war, however reluctant, appear to be acts not of material cooperation but of formal cooperation and obedience.

NOTES

1. St. Thomas Aquinas *Summa theologiae* I-II q. 1 a. 3 ad 3; see also q. 18.
2. See Germain Grisez, Joseph Boyle, and John Finnis, “Practical Principles, Moral Truth, and Ultimate Ends,” *American Journal of Jurisprudence* 32 (1987), 103–8.
3. Grisez, Boyle, and Finnis, “Practical Principles,” 128.
4. See Aquinas *Summa theologiae* I-II q. 100 a. 3.
5. See Alan Donagan, *The Theory of Morality* (Chicago: University of Chicago Press, 1977), 66–74.

6. See Germain Grisez, *The Way of the Lord Jesus*, vol. 1, *Christian Moral Principles* (Chicago: Franciscan Herald Press, 1983), 259–63.
7. Finnis, Chapter 1 above, under “Motive or Intention.”
8. Finnis, Chapter 1 above, under “Attitudes toward War and Nonviolence.”
9. See Grisez, Boyle, and Finnis, “Practical Principles,” 104; Aquinas *Summa theologiae* I-II qq. 12–13.
10. See Aquinas *Summa theologiae* I-II prol.
11. See Joseph Boyle, “Who Is Entitled to Double Effect?” *Journal of Medicine and Philosophy* 16 (1991), 475–95.
12. Finnis, Chapter 1 above, under “Motive or Intention.”
13. G.E.M. Anscombe, “The Justice of the Present War Examined,” in her *Ethics, Religion and Politics: Collected Philosophical Papers, Volume III*, (Minneapolis: University of Minnesota Press, 1981), 74–75.
14. Donagan, *Theory of Morality*, 111.
15. Michael Walzer, *Just and Unjust Wars* (New York: Basic Books, 1977), 39.
16. Aquinas *Summa theologiae* II-II q. 40 a. 2.
17. Vatican Council II, *Gaudium et spes*, para. 79.
18. Cf. David Hollenbach, *Nuclear Ethics: A Christian Moral Argument* (New York: Paulist Press, 1983), 7–8.
19. Walzer, *Just and Unjust Wars*, 39.
20. Walzer, *Just and Unjust Wars*, 39.
21. See Donagan, *Theory of Morality*, 172–209.
22. Donagan, *Theory of Morality*, 111.
23. Walzer, *Just and Unjust Wars*, 39.
24. See Donagan, *Theory of Morality*, 15–17.
25. See John Finnis, Joseph Boyle, and Germain Grisez, *Nuclear Deterrence, Morality and Realism* (Oxford: Oxford University Press, 1987), 342–54.